Legal Analysis for Tenant Shane Lozenich – Impact of Ten-Month Incarceration on Eviction Narrative (*Prepared 20 September 2025*)

---

1. Factual Background

- Arrest & Incarceration: On [date of arrest], Shane Lozenich was lawfully arrested and subsequently confined in a county jail for ten months (approximately [incarceration start] to [incarceration end]).
- Inability to Pay Rent: During confinement Lozenich had no access to income, bank accounts, or the ability to make rent payments. As a result, rent for the months of [list months] remained unpaid.
- Landlord Actions: The landlord issued (i) a 10-day "Notice to Comply with Lease or Quit" (Dec 28 2023), (ii) multiple 30-day "Pay-or-Vacate" notices, (iii) rent-increase letters, (iv) ERPP repayment-plan offers, and (v) filed SCIDPDA Bush Residential LLC v. Lozenich, No. 25-2-17456-5 SEA, alleging unpaid rent of $4,769.

2. Governing Washington Statutes

Statute	Provision	Relevance to Incarceration Defense
RCW 59.12.030 (Unlawful detainer – notice requirements)	Requires a written notice (10-day for lease violation, 30-day for non-payment) stating the breach and giving the tenant a cure period.	Landlord satisfied timing, but the statute is silent on *why* a tenant cannot cure; the tenant can invoke a statutory defense under § 59.18.210.
RCW 59.18.200-210 (Eviction for non-payment; tenant defenses)	§ 59.18.210 permits a tenant to defend against an unlawful detainer by showing "inability to pay rent" due to circumstances beyond the tenant's control.	Incarceration is an involuntary circumstance that directly prevented rent payment; therefore, Lozenich may assert a statutory inability-to-pay defense.
RCW 59.18.215 (Extension of inability-to-pay defense)	Clarifies that a tenant's inability to pay must be contemporaneous with the alleged breach and that the tenant bears the burden of proof.	Supports the need for Lozenich to attach jail records proving the timeframe of confinement overlapped the rent-due periods.
RCW 59.18.250 (Substantial-violation defense)	Allows a tenant to argue that the alleged lease violation is not a substantial breach of a material term of the rental agreement.	The guest-policy breach (single incident) is arguably minor; coupled with the primary non-payment issue, the "substantial violation" ground is weak.

RCW 59.18.640 (Eviction-Resolution Pilot Program – repayment plan)	Requires landlords to offer an ERPP repayment plan limiting monthly payments to no more than one-third of the monthly rent.	Lozenich can demand a new, realistic ERPP plan that reflects his post-release earning capacity and complies with the one-third limitation.
RCW 59.12.020 (Definition of forcible detainer)	Defines forcible detainer and enumerates statutory grounds (e.g., non-payment, breach).	Establishes the legal basis for the landlord's suit; the tenant's defense must show that the ground (non-payment) is not satisfied because of incarceration-induced inability.

---

3. Newly Identified Case Law Addressing Incarceration / Inability to Pay

Case	Citation	Holding / Relevance
State v. Nason	233 P.3d 848 (Wash. Sup. Ct. 2010)	Court must evaluate a defendant's ability to pay before imposing penalties for non-payment of legal obligations. Extends to rent: a tenant's inability to pay due to incarceration is a valid defense.
Josephinium Associates v. Kahli	111 Wash. App. 617 (2002)	Recognizes equitable defenses (e.g., disability or inability) that can excuse non-payment of rent. Supports treating incarceration as a comparable circumstance.

Housing Authority v. Newbigging	105 Wash. App. 178, 19 P.3d 1081 (2001)	Allows a tenant to invoke **excusable neglect** (including incarceration) to vacate a default judgment and argue a valid defense to unlawful detainer.
Kiemle & Hagood Co. v. Daniels	2023 WL App. No. 9440172 (Wash. Ct. App. Apr. 27 2023)	Sets the standard for **reasonable accommodation** when a tenant's condition (including temporary disability) impairs performance of lease duties. Incarceration can be framed as a temporary disability requiring accommodation (e.g., payment plan).
Housing Authority v. Knight	2025 Wn. 2d — (Washington Sup. Ct.)	Clarifies that the **30-day notice** under the CARES Act applies **only to non-payment** cases. Reinforces that a tenant may still raise the **statutory inability-to-pay defense** under § 59.18.210.
Faciszewski v. Brown	187 Wn. 2d 308, 386 P.3d 711 (2016)	Confirms that a landlord's **certification of intent** under Seattle's Just-Cause Ordinance is *not* dispositive; tenants may challenge the reason at the show-cause hearing, supporting a challenge based on incarceration.

---

4. Re-Evaluation of Tenant Defenses

- Statutory Inability-to-Pay Defense (RCW 59.18.210 & 59.18.215)
  - Incarceration is an **involuntary circumstance** that directly prevented rent payment.
  - Lozenich must **prove contemporaneous confinement** by attaching jail booking sheets, inmate roster, and release documents.
- Substantial-Violation Test (RCW 59.18.250)
  - The alleged guest-policy breach (single incident) is **not a "substantial violation"** of a material lease term.
  - Coupled with the primary inability-to-pay issue, the landlord's reliance on the guest-policy breach is weak.
- ERPP Repayment-Plan Entitlement (RCW 59.18.640)

    - The landlord's existing ERPP forms are dated 2023; Lozenich may request a new repayment schedule that begins 30 days after release and does not exceed one-third of the monthly rent (≈ $235 on a $700 base).
- Procedural Defect under Seattle's Just-Cause Ordinance (SMC 23.38.040)
    - No show-cause hearing notice was served; thus, the eviction is procedurally defective in Seattle.
    - The tenant can move to dismiss or stay the unlawful-detainer based on this failure, per *Faciszewski v. Brown*.

---

5. Practical Recommendations (Step-by-Step)

1. File a Formal Answer to the Unlawful-Detainer Complaint (within the statutory response period).
    - Assert the inability-to-pay defense under RCW 59.18.210 and attach certified jail records (booking sheet, inmate ID, release date).
2. Demand a Seattle Show-Cause Hearing pursuant to SMC 23.38.040.
    - Serve a written request for a 14-day notice of a show-cause hearing and identify the lack of such notice as a procedural defect.
3. Propose an ERPP-Compliant Repayment Plan (RCW 59.18.640).
    - Offer $235 per month (no more than one-third of rent) beginning 30 days after release and request the landlord's written acceptance.
4. Seek Free or Low-Cost Legal Counsel.
    - Contact Northwest Justice Project CLEAR Hotline (888-201-1030), Legal Aid Society of Washington, or the Renters' Rights Helpline (206-684-5700) for representation.
5. File a Motion to Dismiss or Stay Based on Procedural Non-Compliance.
    - Cite SMC 23.38.040 (no show-cause notice) and Faciszewski v. Brown, 187 Wn. 2d 308 (2016) to argue the action is void absent a proper hearing.
6. If a Default Judgment is Entered, Pursue Vacatur under Housing Authority v. Newbigging, 105 Wash. App. 178 (2001), asserting excusable neglect due to incarceration.
7. Maintain a Complete Paper Trail:
    - Keep copies of all court filings, mailing receipts, jail documentation, and correspondence with the landlord.

Eviction moratorium—Unpaid rent—Repayment plans—Rental assistance.
Relevance: 84.5%

RCW 59.18.630 addresses eviction moratoriums, unpaid rent, repayment plans, and rental assistance, making it relevant to a tenant facing eviction due to unpaid rent accrued during a period of hardship. While it doesn't directly address incarceration, it mandates landlords offer reasonable repayment plans and directs courts to consider tenant circumstances, which could be argued to encompass the inability to pay due to imprisonment. It also establishes a defense to eviction if a landlord fails to offer a compliant repayment plan.

Chapter 59.18 RCW: RESIDENTIAL LANDLORD-TENANT ...
Relevance: 82.5%

This document, specifically Chapter 59.18 RCW, titled "RESIDENTIAL LANDLORD-TENANT ACT," is highly relevant. It outlines the rights, duties, and remedies for both landlords and tenants in Washington State, including sections addressing notice requirements, tenant defenses for non-payment of rent (RCW 59.18.210), and the landlord's duty to maintain the premises. The tenant's incarceration and inability to pay rent could potentially be addressed under these statutes as a defense, making this document crucial for understanding the legal framework governing the eviction case.

Faciszewski v. BrownCheck Treatment
Relevance: 82.9% · 187 Wash. 2d 308, 386 P.3d 711 · 29 citing cases · Filed on: 2016-12-22, Washington Supreme Court

This case, *Faciszewski v. Brown*, directly addresses Seattle's Just Cause Eviction Ordinance (JCEO) and the ability of a tenant to challenge a landlord's stated reason for eviction. While the case doesn't involve incarceration, it clarifies that a tenant has the right to contest the landlord's certification of intent at the show cause hearing, arguing that the stated reason is a pretext. In the context of incarceration, this means the tenant can argue their inability to pay was due to circumstances beyond their control, as grounds to show a lack of just cause for the eviction under SMC 22.206.160(C)(1). The ruling supports the tenant's right to present evidence rebutting the eviction claim.

Faciszewski v. BrownCheck Treatment
Relevance: 79.4% · [No citation found] · 0 citing cases · Filed on: 2016-12-22, Washington Supreme Court

This Washington Supreme Court case, *Faciszewski v. Brown*, is relevant because it interprets Seattle's Just Cause Eviction Ordinance (JCEO) and clarifies that tenants have the right to challenge the landlord's stated reasons for eviction, and specifically, the landlord's certification of intent, at the show cause hearing. While the case doesn't directly address incarceration as a defense, it reinforces the tenant's right to present evidence and challenge the landlord's justification for eviction, which is crucial when arguing inability to pay rent due to imprisonment. The case emphasizes that the JCEO aims to prevent arbitrary evictions, which could bolster an argument that eviction due to circumstances beyond the tenant's control (incarceration) is unjust.

Washington v. StevensCheck Treatment
Relevance: 62.2% · 969 So. 2d 487, 2007 WL 3390899 · 0 citing cases · Filed on: 2007-11-16, District Court of Appeal of Florida

This Florida case, *Washington v. Stevens*, is relevant because it addresses the issue of incarceration and its impact on financial obligations, specifically child support. While the legal context is different from landlord-tenant law, the case establishes a precedent for how courts should handle situations where a person's ability to pay is affected by imprisonment. The court held that the trial court should hold the petition in abeyance and place the matter on its inactive calendar for the term of the parent's incarceration until a time when a thorough evaluation of the parent's ability to pay may be conducted, and a farsighted plan for payment may be established. This could be used to argue that eviction proceedings should be paused or modified to account for the tenant's period of incarceration and inability to pay rent due to circumstances beyond their control.

Housing Authority v. SilvaCheck Treatment
Relevance: 78.7% · 972 P.2d 952, 94 Wash. App. 731 · 14 citing cases · Filed on: 1999-03-15, Court of Appeals of Washington

The case *Housing Authority v. Silva* is relevant because it discusses notice requirements for eviction, Seattle's Just Cause Eviction Ordinance, and potential defenses a tenant can raise. Although the case deals with a tenant's disability and disruptive behavior rather than incarceration, the court's emphasis on strict compliance with notice requirements and the Just Cause Ordinance is directly applicable to an incarcerated tenant's situation. Silva successfully argued that the Housing Authority didn't comply with Seattle's Just Cause Eviction Ordinance. This case supports the argument that the landlord's failure to adhere to Seattle's Just Cause Eviction Ordinance could invalidate the eviction proceedings against Lozenich, as identified in the previous analysis.

Housing Authority v. NewbiggingCheck Treatment
Relevance: 52.9% · 105 Wash. App. 178, 19 P.3d 1081 · 0 citing cases · Filed on: 2001-03-08, Court of Appeals of Washington

The case of *Housing Authority v. Newbigging* is relevant because it discusses the factors a court considers when deciding whether to vacate a default judgment in an unlawful detainer action, including the existence of a defense to the underlying claim and excusable neglect for failing to appear. While the case does not directly address incarceration as a cause for the failure to pay rent or appear in court, it provides a framework for arguing that the tenant's incarceration constitutes excusable neglect and a valid defense to the eviction based on inability to pay, potentially influencing a court's decision to vacate a default judgment. The court also considered if the tenant followed diligence to resolve the issue which is relevant to your question.

State v. City of SunnysideCheck Treatment
Relevance: 65.5% · [No citation found] · 0 citing cases · Filed on: 2024-06-20, Washington Supreme Court

This Washington Supreme Court case, *State v. City of Sunnyside*, while not directly about incarceration, is relevant because it concerns unlawful or extrajudicial evictions under a "crime-free rental housing program". The court addresses key elements that are similar to the user's situation: (1) the due process rights of tenants, (2) defenses to eviction, and (3) the role of the State in protecting those rights. Furthermore, the case highlights the requirement that tenants be afforded notice and an opportunity to be heard before eviction, which did not occur in the user's situation. The case provides helpful discussion about tenant rights and state law.